

CONSENT AGREEMENT
Nationstar Mortgage, LLC and City of Belfast

WHEREAS, the Code and Planning Department of the City of Belfast, Maine (the “City”) has alleged that the property owned by Nationstar Mortgage, LLC by deed recorded at Book 3587, Page 129 & 317, which the City identifies as Map 14, Lot 32A and which is located at 358 High Street in the City of Belfast (the “Property”), is in violation of certain provisions of the City Code of Ordinances, including:

1. Lack of legal access to the Property from the public way (High Street);
2. Failure of the building located on the Property to meet the minimum front structure setback requirements in accordance with Section 102-424;
3. Lack of sufficient on-site parking (4 identified parking spaces) for a two-family dwelling structure in violation of Section 98-242(a) and (b), reference Schedule of Required Off-Site Parking Spaces, and location of a parking lot serving the Property in the front yard, in violation of Section 98-247; and
4. Failure to comply with provisions of a building permit # 197-2003 issued by the City of Belfast to allow construction of a two-family dwelling structure.

WHEREAS, the City Planner and Code Enforcement Officer have notified Nationstar Mortgage, LLC of the alleged violations;

WHEREAS, the City and Nationstar Mortgage, LLC desire to resolve the alleged violations of the Zoning Ordinance without litigation; and

WHEREAS, Nationstar Mortgage, LLC has paid the City the sum of \$3,000 in consideration of the City’s willingness to accept this Agreement in lieu of prosecution;

NOW THEREFORE, Nationstar Mortgage, LLC and the City enter into the following Consent Agreement (the “Agreement”).

Terms and Conditions of Consent Agreement for Non-Prosecution

The terms of this Agreement shall apply to the Property, and shall be binding upon Nationstar Mortgage, LLC, its successors and assigns (collectively referred to herein as the “Owner”).

1. The Owner shall, within 90 days of Council approval of this Agreement, establish permanent monumentation for the newly established eastern corners of the Property as shown on the plot plan prepared by Good Deeds, Inc., dated November 4, 2011, as revised March 7, 2012 and July 2, 2012, hereinafter referred to as the ‘Plan’, a copy of which is attached hereto. The Owner shall obtain a deed for the Property that accurately depicts the dimensions of the Property as shown on the Plan. The Owner shall record this deed in the Waldo County Registry of Deeds (the “Registry”) and provide a copy of the deed to the City within 90 days of Council approval of this Agreement.
2. The Owner shall work with the owner of Map 14, Lot 32 (the “Abutter”), to record an amended deed for Abutter’s property, which identifies the new dimensions of Abutter’s property as shown on the Plan and includes reference to all easements on the Abutter’s property that benefit the Property. The Owner shall provide the City a copy of the amended deed for the Abutter’s property after it has been recorded in the Registry.
3. The duplex shown on the Plan (the “Duplex”) may remain on the Property in the location shown on the Plan.
4. The Owner shall not enlarge any portion of the Duplex that does not conform to the minimum structure setback requirements for the applicable zoning district. An enlargement means an increase in the footprint of the structure (square feet) or the height of the structure beyond the dimensions existing as shown on the Plan.
5. The Owner may seek a building permit to enlarge or alter any portion of the Duplex that conforms to the minimum structure setback requirements for the applicable zoning district. Any failure of the Owner to

comply with any laws or ordinances applicable to the enlargement or alteration of the Duplex shall not be considered a violation of this Agreement but shall subject the Owner to prosecution at the City's discretion.

6. The Owner shall, within 90 days of Council approval of this Agreement, provide the City evidence that it has obtained and recorded an easement to allow access from High Street to the Property. The dimensions and location of this easement shall comply with those identified on the Plan.
7. The Owner shall construct a driveway from High Street to the Property in the location identified on the Plan. The City's engineer shall create detail design drawings for this proposed driveway with exact specifications based upon 50-year flood data so that the driveway will not impede, diverge, dam or deleteriously reduce the conveyance capacity of the existing drainage courses or otherwise flood the property of abutter Michelle Morrow, Book 1227, Lot 338. Said design shall be made in recognition of the fact that surface water from an undeveloped swath of land behind the properties of Morrow and the Owner collects through two natural drainage courses which converge on land of Kennedy, and that the driveway might impede the flow of this surface water if adequate design provisions are not made.

The City shall bear 1/3 of the cost associated with the design of said driveway across 360 High Street. The remaining 2/3 of the cost shall be borne by NationStar and Kennedy with individual contributions to be determined according to their own agreement. The City shall deliver a copy of this design to abutter Michelle Morrow or her successor, who shall have ten days to review the plan with an engineer of her choosing, and to suggest changes to the City Engineer. The City Engineer shall incorporate the proposed changes into the driveway design as long as they are considered of some benefit and capable of being constructed without unreasonable expense to the Owner. After a final design has been produced, the Owner shall construct the driveway and drainage system in accordance with the approved design and the City shall inspect the driveway during construction and upon completion of construction to insure that the driveway is constructed as designed. Erosion control measures meeting the State Best Management Practices shall be employed in all construction work and no construction shall take place outside of the easement area as shown on the Plan. The Owner shall be responsible for maintaining the driveway and culverts in good working condition. Further, the Owner shall obtain the required road opening permit from the City Public Works Department and shall pay all fees associated with said permit. The Owner must commence construction of the driveway within 180 days of Council approval of this Agreement for terms of the Agreement to remain in effect and shall complete construction within 240 days. The Owner shall hold harmless and indemnify the City of Belfast against liability for any damages occasioned by the engineering or construction of the driveway.

8. The Owner shall construct a parking area on the Property in the location identified on the Plan. The parking area shall be adequate to support a minimum of four vehicles and it shall be constructed to dimensions shown on the 'Plan' with a minimum of a 24 inch gravel base. The Owner shall be responsible for maintaining the parking area in good working condition. Further, the Owner must commence construction of the parking area within 180 days of Council approval of this Agreement for terms of the Agreement to remain in effect and shall complete construction within 240 days. The City, in requiring the construction of the parking area, grants the City Code Enforcement Officer the authority to work with the Owner to make changes in the final lay-out of the parking area shown on the Plan to accommodate site characteristics, provided the lay-out of the parking area is generally consistent with the lay-out shown on Plan and the lay-out conforms with all City Code of Ordinance requirements.
9. The Owner shall ensure that the Duplex is served by public water, public sewer and electricity. The Owner shall provide the City evidence that the Duplex is served by said utilities and that the owner has secured any easements required to allow the provision of such utility services to the Duplex. The Owner must connect the Duplex to said utility services within 90 days of Council approval of this Agreement for terms of the Agreement to remain in effect unless additional time is reasonably required to complete construction or installation of any infrastructure required for the provision of such services.
10. The existing duplex can remain as a two-family dwelling (residence) or it can be converted to a single family dwelling. The existing duplex shall not be used as a structure that includes more than 2 dwelling units, and shall not be used for any type of nonresidential use. This condition, however, shall not preclude the owner from requesting and obtaining a use permit from the Belfast Planning Board to allow use of the property (one or both units) as a home occupation or commercial use that is permitted by the City Code of

Ordinances, provided said home occupation does not result in any significant increase in traffic or in the amount of on-site or off-site parking.

11. No terms of this Agreement shall be construed to preclude the Owner from obtaining a building permit to construct an allowed accessory structure or structures on the Property. Any failure of the Owner to comply with any laws or ordinances applicable to the construction or placement of accessory structure(s) shall not be considered a violation of this Agreement but shall subject the Owner to prosecution at the City's discretion.
12. The Owner shall cause this Agreement and all future amendments hereto to be recorded in the Waldo County Registry of Deeds. Upon performing the work described in Sections 1, 2, 6, 7, 8 and 9 to the satisfaction of the City, Owner may request and the City shall provide confirmation of compliance, which Owner may record in the Waldo County Registry of Deeds.
13. The City shall not issue a certificate of occupancy for either or both units in the duplex until all requirements of this agreement are satisfied to the satisfaction of the Code Enforcement Officer and stipulation of all applicable City Code of Ordinances.
14. In consideration of Owner agreeing to perform the work described in Sections 1, 2, 6, 7, 8, and 9, City agrees to take no further action to prosecute the alleged violations identified on the first page of this Agreement. In the event that the Owner fails to perform the work set forth in Sections 1, 2, 6, 7, 8 and 9 by the deadlines provided, Owner shall be deemed in violation of this Agreement and the City shall be entitled to issue a notice of violation for and prosecute any and all violations then existing on the Property, and to seek specific performance of the terms of this Agreement. The date of this Agreement shall be considered the beginning date of any violation that may be punishable by a fine in accordance with 30-A M.R.S.A. § 4452.
15. This Agreement may only be amended by written agreement of the Owner and the Belfast City Council. Any change in the location of the driveway or the design of the driveway and drainage system would require approval of the City's engineer. Any proposed change to the location of the driveway, or the driveway drainage system would require prior written notice, at least 10 business days before the City Council meeting, to the Abutter Morrow or her successor in interest. The notice must described the proposed modification and contain the City's engineer's recommendations. With the exception of the requirement to construct the driveway and drainage system in accordance with the City Engineer's designs and specifications and all consequences resulting from such non-compliance, the terms of this Agreement, including any recitation of facts regarding any natural or artificial conditions existing on any of the referenced properties, are for the purposes of implementing and interpreting this Agreement only. They shall have no evidential weight or effect in any other proceeding or litigation and shall not constitute an admission or acceptance by any party of the statements herein.

This Consent Agreement was adopted by the City Council at its meeting of December 4, 2012. The Council authorizes the City Manager to sign the Agreement on its behalf.

On Behalf of Nationstar Mortgage, LLC

Representative: Corey R. Nove, VP

12-10-12
Date

Notary: _____
Kristie L. Cotham (Print Name)

On Behalf of the City of Belfast

12-13-12

Joseph Slocum, City Manager

Date

Michelle Morrow

12-13-12

Date